

SECOND SKIN

— B O U D O I R —



CLIENT AGREEMENT & MODEL RELEASE

Private boudoir photography agreement for Second Skin Boudoir clients

Client Full Legal Name	
Preferred Name	
Email	
Phone	
Session Date / Time	
Session Location	

This Agreement is made between Second Skin Boudoir ("Photographer," "Studio," "we," or "us") and the client named above ("Client," "you," or "your") for a private boudoir photography session and related products. By signing, Client confirms that Client has read, understands, and agrees to the terms below.

Privacy Default: Your images will not be shared online, in advertising, in print, or publicly unless you give written permission in the Image Use Election section of this Agreement or in a later signed release.

Agreement Terms

1. Session Fee and Reservation. The session fee reserves the session date and covers planning, wardrobe guidance, the private boudoir session, fully guided posing, and the private reveal and ordering appointment. Unless expressly stated in writing, the session fee does not include albums, digital files, printed artwork, hair and makeup, location fees, parking, travel, sales tax, or products.

2. Artwork, Products, and Collections. Albums, digital files, printed artwork, and collections are selected separately after the session at the private reveal and ordering appointment. Product pricing and collection details are provided in the current Second Skin Boudoir pricing guide and may change until the session is booked or an order is placed.

3. Payments and Product Orders. Product orders, albums, digitals, collection upgrades, payment-plan deposits, and custom artwork orders are final once approved by Client. Because products are custom-made, no product order may be canceled, refunded, reduced, or exchanged after Client approval except as required by law or expressly agreed in writing by Photographer.

SECOND SKIN

— B O U D O I R —

- 4. Payment Plans.** If a payment plan is used, products may not be delivered until the order is paid in full unless Photographer agrees otherwise in writing. Missed, late, reversed, or disputed payments may delay editing, production, delivery, or product release. Client remains responsible for the full balance of any approved order.
- 5. Rescheduling, Cancellation, and No-Show.** Client may request one reschedule with at least seven (7) calendar days notice, subject to availability. Additional reschedules, short-notice reschedules, cancellations, late arrivals, or no-shows may require a new session fee. Session fees are non-refundable because the date, planning time, and creative resources are reserved for Client.
- 6. Late Arrival.** If Client arrives late, the session may be shortened to protect the schedule and location booking. Full session fees and product pricing still apply. Arrival more than thirty (30) minutes late may be treated as a no-show unless Photographer agrees otherwise.
- 7. Hair, Makeup, Wardrobe, and Styling.** If hair and makeup are included, Client agrees to arrive on time with clean, dry hair and a clean face unless instructed otherwise. Client is responsible for bringing wardrobe pieces, accessories, shoes, and personal items unless otherwise agreed. Photographer may provide styling guidance but does not guarantee fit, availability, or performance of any garment.
- 8. Artistic Style and Creative Control.** Client has reviewed the style and portfolio of Second Skin Boudoir and understands that photography is subjective. Photographer retains full creative discretion over lighting, posing, angles, image selection, editing style, cropping, color, retouching, and final artistic interpretation.
- 9. Image Selection and Editing.** Photographer selects the images presented at the reveal. Raw, unedited, rejected, test, duplicate, or outtake images are not included and will not be delivered. Final images receive professional editing consistent with the Studio style. Extensive body modification, advanced retouching, composites, wardrobe alteration, background replacement, or re-editing may require additional fees.
- 10. Privacy and Confidentiality.** Photographer will take reasonable steps to protect Client privacy, image security, and confidentiality. Images will not be publicly shared without written permission. Client also agrees not to publicly post private behind-the-scenes materials, screenshots of unpurchased proofs, Studio communications, or confidential pricing documents without permission.
- 11. Copyright and Client License.** Photographer owns the copyright to all images created during the session. Client receives a personal-use license only for purchased digital images. Client may print, share privately, post personally, and gift purchased images, but may not sell, license, alter, filter, edit, enter into contests, use commercially, provide to vendors for advertising, or claim authorship without written permission.
- 12. Social Media Credit and Alteration.** When posting purchased images online, Client agrees not to apply filters, heavy edits, AI alterations, or modifications that materially change the image or Studio style. Credit to Second Skin Boudoir is appreciated but not required unless image use is commercial or promotional.
- 13. Image Storage and Archive.** Photographer is not required to retain images indefinitely. Unpurchased images may be deleted after thirty (30) days from the reveal. Purchased final images are typically archived for at least ninety (90) days after delivery, but Client is responsible for downloading and backing up delivered files.
- 14. Client Conduct, Safety, and Boundaries.** This is a professional photography session. Client agrees to respectful communication and conduct. Photographer may stop or cancel the session immediately if there is harassment, unsafe conduct, intoxication, illegal activity, threats, boundary violations, or behavior that compromises safety or professionalism. In that event, no refund is due.
- 15. Professional Boudoir Context, Consent, and Boundaries.** Client understands that boudoir photography may include discussion of intimate wardrobe, covered or implied nudity, posing, facial expression, body positioning, sensual styling, and artistic direction. Client consents to receive professional direction within this context and agrees that ordinary, disclosed, consent-based posing direction, wardrobe guidance, and image creation inherent in a boudoir session do not, by themselves, constitute sexual harassment, sexual misconduct, discrimination, or inappropriate conduct. Photographer will avoid physical contact except minor pose, hair, or wardrobe adjustments after Client consent, and Client may decline, pause, modify, or stop any pose or adjustment at any time. Nothing in this section waives claims for intentional unlawful acts or rights that cannot be waived by law; however, Client agrees not to bring, threaten, or support a claim arising solely from professional, consent-based boudoir direction, styling, posing, or photography that Client voluntarily requested and authorized.
- 16. Age, Capacity, and Consent.** Client represents that Client is at least eighteen (18) years old, has the legal capacity to sign this Agreement, and is voluntarily choosing to participate. Second Skin Boudoir does not photograph minors for boudoir sessions.

SECOND SKIN

— B O U D O I R —

17. Location Rules and Property. Client agrees to follow all location, hotel, rental, studio, or venue rules. Client is responsible for damage caused by Client or Client guests to the location, props, furnishings, wardrobe items, or equipment. Client is responsible for all location-specific fees unless otherwise stated in writing.

18. Guests and Companions. Client may bring one supportive adult guest only if approved in advance by Photographer. Guests may be asked to leave if they interrupt the session, create discomfort, record without permission, or interfere with the creative process.

19. No Recording or Behind-the-Scenes Capture. Client and guests may not photograph, film, livestream, or record the session, set, location, proofs, reveal screen, or Photographer without written permission. This protects privacy, copyright, and the controlled nature of the session.

20. Health, Physical Limitations, and Personal Responsibility. Client agrees to notify Photographer before the session of any relevant physical limitations, injuries, pregnancy considerations, allergies, mobility issues, or posing restrictions. Client is responsible for communicating discomfort during posing. Photographer will make reasonable posing adjustments when notified.

21. Force Majeure and Unavoidable Events. Neither party is responsible for delay or non-performance caused by events beyond reasonable control, including illness, emergency, weather, venue cancellation, power outage, equipment failure, natural disaster, travel disruption, government restriction, or other unavoidable event. The remedy will generally be rescheduling or, when appropriate, substitution of comparable services.

22. Equipment Failure and Limitation of Liability. Photographer uses reasonable care with equipment, storage, and workflow. If images are lost, damaged, unavailable, or materially defective due to equipment failure, data corruption, accident, or other cause beyond reasonable control, Photographer liability is limited to rescheduling the session or refunding amounts paid for the affected service or product. Photographer is not liable for emotional distress, consequential damages, lost opportunities, or incidental damages.

23. Chargebacks and Collection Costs. Client agrees to contact Photographer first in good faith regarding any billing concern. Unauthorized chargebacks, payment reversals, or disputed payments for valid charges may result in suspension of delivery and collection of the unpaid amount, plus reasonable processing fees, collection costs, and attorney fees where allowed by law.

24. Indemnification. Client agrees to indemnify and hold Photographer harmless from claims, damages, losses, or expenses arising from Client breach of this Agreement, Client misuse of images, unauthorized commercial use, Client-provided location issues, Client guests, or inaccurate information provided by Client.

25. Governing Law, Venue, and Dispute Resolution. This Agreement is governed by the laws of the State of Florida. The parties agree to attempt good-faith informal resolution before filing any claim. If a claim is filed, venue will be in the county in Florida where Photographer maintains its principal business location unless the parties agree otherwise in writing.

26. Entire Agreement and Severability. This Agreement, any signed product order, and any written pricing or invoice terms form the entire agreement between the parties. If any provision is found unenforceable, the remaining provisions remain in effect. Changes must be in writing and signed or acknowledged by both parties.

SECOND SKIN

— B O U D O I R —

Image Use Election and Model Release

Client must choose one privacy option below. If no option is selected, the default is Option A: no public sharing.

☐	A. No Public Sharing: I do not give permission for any images from my session to be shared publicly, online, in advertising, in portfolio use, or on social media unless I sign a separate release later.
☐	B. Anonymous / Detail Images Only: I give permission for Second Skin Boudoir to share selected anonymous images that do not clearly identify my face or unique identifying features. Photographer will use reasonable care to preserve privacy.
☐	C. Selected Images Only: I give permission for Second Skin Boudoir to share only the specific images I approve in writing after the reveal. No other images may be shared.
☐	D. Full Model Release: I give Second Skin Boudoir permission to use selected session images for portfolio, website, social media, studio samples, printed marketing, advertising, educational, and promotional purposes without additional compensation.
☐	E. Notes / Restrictions: Additional restrictions, approved image numbers, crop limits, anonymity requests, or expiration dates may be written here or attached as a signed addendum.

If Client selects Option B, C, or D, Client grants Photographer the selected release rights and waives any claim to additional payment for that permitted use. Client may revoke future public use by written notice, but revocation does not require removal of materials already printed, published, posted, distributed, or in production before the revocation is received.

Pricing and Product Acknowledgment

- ☐ I understand that the session fee does not include digital images, albums, printed artwork, or collections unless stated in writing.
- ☐ I understand that products and collections are selected after my private reveal and ordering appointment.
- ☐ I understand that custom products and approved orders are final once ordered.
- ☐ I understand that sales tax, travel fees, location fees, or additional retouching may apply where relevant.
- ☐ I understand that I am responsible for downloading and backing up delivered digital files.

Electronic Signature Consent

Client agrees that this Agreement may be signed electronically and that an electronic signature, typed name, checkbox acknowledgment, digital signature platform signature, or similar electronic process is intended to authenticate this Agreement and be treated as a signature. Client consents to receive, review, sign, and retain this Agreement electronically.

SECOND SKIN

____ B O U D O I R ____

Signatures

Client Signature:	Second Skin Boudoir / Photographer Signature:
Printed Name:	Printed Name / Authorized Representative:
Date:	Date:
Client Initials - Image Use Election:	Photographer Initials:
Client Email for Delivery:	Studio Email / Phone: